

Appeals Notice

As a Medicaid applicant/participant, you have the right to request a fair hearing regarding an adverse decision. To initiate the Medically Complex Children (MCC) waiver appeal process, you or your authorized representative must submit a written request stating the issue you wish to appeal along with a copy of the attached Notification Form. The request must be sent to the Division of Appeals and Hearings no later than thirty (30) days from the receipt of this notification. The Division of Appeals and Hearings will issue an appeal decision within ninety (90) days of the appeal being filed.

The applicant or authorized representative can request an appeal in any of the following ways:

- In-person: Go to a local eligibility office and request to file an appeal in person
- Online: www.scdhhs.gov/appeals
- Email: Appeals@scdhhs.gov
- Fax: (803) 255-8251
- Mail:
SCDHHS Division of Appeals and Hearings
Post Office Box 8206
Columbia, SC 29202
- Telephone: (888) 549-0820

If applicable you may be eligible to receive continued benefits pending a hearing decision. If you are interested in continued benefits you must contact your waiver representative within ten (10) calendar days before the effective date of action indicated above. If the hearing decision is not in your favor, you may be required to repay Medicaid benefits received pending the decision to the South Carolina Department of Health and Human Services. Please attach a copy of this notification with your request. You or your representative will be notified of the date, time and place the hearing will take place. In your request for a fair hearing, you must state with specificity, which issue(s) you wish to appeal. Unless a request is made within thirty (30) calendar days of receipt of notification, the decision will be final and binding. A request for a fair hearing is considered filed if postmarked by the thirtieth (30th) calendar day following receipt of a notification of loss of services, denial or termination.

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Notice of Non-Discrimination

The South Carolina Department of Health and Human Services (SCDHHS) complies with applicable federal civil rights laws and does not discriminate on the basis of race, color, national origin, age, disability, or sex. SCDHHS does not exclude people or treat them differently because of race, color, national origin, age, disability, or sex.

SCDHHS provides free aids and services to people with disabilities, such as qualified sign language interpreters and written information in other formats (large print, braille, audio, accessible electronic formats, other formats). We provide free language services to people whose primary language is not English, such as qualified interpreters and information written in other languages. If you need these services, please contact the Americans with Disabilities Act (ADA)/Civil Rights Official by mail at: PO Box 8206, Columbia, SC 29202-8206, by phone at: 1-888-549-0820 (TTY: 1-888-842-3620), or by email at: civilrights@scdhhs.gov.

If you believe SCDHHS has failed to provide these services or discriminated in another way on the basis of race, color, national origin, age, disability, or sex, you can file a grievance with the Civil Rights Official using the contact information provided above. You can file a grievance in person, by mail, or via email. If you need help filing a grievance, we are available to help you.

You can also file a civil rights complaint with the U.S. Department of Health and Human Services, Office for Civil Rights, electronically through the Office for Civil Rights Complaint Portal, available at <https://ocrportal.hhs.gov/ocr/portal/lobby.jsf> or by mail or phone at: U.S. Department of Health and Human Services, 200 Independence Avenue, SW, Room 509F, HHH Building, Washington, D.C. 20201 or by phone at: 800-368- 1019, 800-537-7697 (TDD). Complaint forms are available at <http://www.hhs.gov/ocr/office/file/index.html>

